

24STCV33920 24STCV33920

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-09-24

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Case Number: 24STCV33920 Hearing Date: September 24, 2026 Dept: 732

Hunter Daniel Loncar v. Airbnb, Inc., et al.

CASE NUMBER: 24STCV33920

UNOPPOSED

Defendant Airbnb, Inc.'s Motion to Deem Matters Admitted against Plaintiff Hunter

Facts: This is an action for negligence and premises liability. The Complaint alleges as follows. Plaintiff Hunter Daniel Loncar ("Plaintiff") was injured while sitting on a defective and negligently maintained swing while on premises in Los Angeles owned and controlled by Defendants Bahram Danesh and Airbnb, Inc. (Complaint at p. 5.)

Procedural History: Plaintiff filed the Complaint on December 17, 2024, alleging two causes of action:

1. General Negligence

2. Premises Liability

On August 29, 2025, this court granted Downtown LA Law Group's motion to be relieved as counsel for Plaintiff.

On June 15, 2026, this court overruled Defendant's demurrer to the Complaint.

Defendant filed the present motion to deem admitted on August 19, 2026. No opposition has been filed.

Analysis

I. MOTION TO DEEM ADMITTED

"[a]ny party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) If a party fails to serve a timely response to requests for admissions, "[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction" (Code Civ. Proc., § 2033.280 subd. (b).)

Thursday, September 24, 2026

A party who fails to timely respond to requests for admission waives all objections to the requests. (Code Civ. Proc. § 2033.280, subd. (a).)

Defendant Airbnb, Inc. ("Defendant") served requests for admission upon Plaintiff Hunter Daniel Loncar ("Plaintiff") on July 2, 2026, with a responsive due date of August 11, 2026. (Chor Decl. ¶¶ 2–3.) No responses to the requests have been served. (Chor Decl. ¶¶ 3–4.)

Defendant has shown that Plaintiff has failed to serve responses to requests for admission. No opposition to the present motion has been filed.

The motion to deem matters admitted is therefore GRANTED.

Superior Court of California

County of Los Angeles

Department 732

HUNTER DANIEL LONCAR., Plaintiffs v. AIRBNB, INC. et al., Defendants. Case No.: 24STCV33290 Hearing Date: September 24, 2026 [TENTATIVE] RULING RE: DEFENDANT AIRBNB, INC.'S MOTION TO DEEM MATTERS ADMITTED AGAINST PLAINTIFF HUNTER

Defendant Airbnb, Inc.'s Motion to Deem Matters Admitted against Plaintiff Hunter Loncar is GRANTED. .

Defendants to give notice.

Dated: September 24, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court